

24STCV22897 24STCV22897

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-07

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Case Number: 24STCV22897 Hearing Date: August 7, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 7, 2026 TRIAL DATE:

Not Set

CASE: Gloria Hernandez Juarez, et al. v.

Norman Harold Peeples, IV

CASE NO.: 24STCV22897

APPLICATION

FOR ORDER FOR PUBLICATION

MOVING PARTY: Plaintiffs Gloria Hernandez Juarez, Estate of Michael

Juarez

RESPONDING PARTY: None

CASE

HISTORY:

09/05/2024:

Complaint filed.

10/15/2025:

First Amended Complaint filed.

01/13/2026:

Second Amended Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for personal injury
arising out of an automobile vs pedestrian collision.

Plaintiffs filed an application
for Order for Publication

TENTATIVE RULING:

Plaintiffs' application for Order
for Publication is DENIED without prejudice.

DISCUSSION:

Unlike other service methods, a plaintiff must obtain a court order prior to serving a defendant via publication. Strict compliance with the statutory requirements is required. (County of Riverside v. Sup. Ct. (1997) 54 Cal.App.4th 443, 450.) To obtain an order for publication, the plaintiff must show reasonable diligence in serving the defendant by some other manner. (Code Civ. Proc., § 415.50, subd. (a).) The plaintiff must establish reasonable diligence via the testimony of an individual with personal knowledge of the efforts to serve the defendant. (Olvera v. Olvera (1991) 232 Cal.App.3d 32, 42.) Likewise, the plaintiff must establish that a cause of action exists against the defendant via the testimony of an individual with personal knowledge of the underlying facts. (Harris v. Cavasso (1977) 68 Cal.App.3d 723, 726.) A verified complaint is "no substitute for the required affidavit, and the existence of a cause of action was a jurisdictional prerequisite to the issuance of the order for publication." (Olvera, supra 232 Cal.App.3d at 42 fn. 9.) However, if the form for application for service by publication contains a verification, that

is sufficient if signed by the plaintiffs. (Id.)

First, Plaintiffs have attached declarations of reasonable diligence, which shows a few process servers attempted to Defendant at 323 N Soto St, Apt 15 in Los Angeles on nine different occasions. (Brooks Decl.; Garcia Decl.; and Arellano Decl.) The process servers state that the property is located behind a locked security gate with no intercom, doorbell, or other means of notifying the residents of his presence. (Id.) They waited outside for 15 minutes on one occasion 10 minutes on another occasion, and 7 minutes on another occasion and no one answered. (Id.) Moreover, on one occasion one process server gained access to the building when someone walked out, and knocked on the door but no one answered. (Id.)

The

Court finds it is questionable whether Plaintiffs have shown reasonable diligence in attempting to serve Defendant. “The term ‘reasonable diligence’ denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney.¿ A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives, and by investigation of appropriate city and telephone directories, [voter registries, and assessor's office property indices situated near the defendant's last known location], generally are sufficient. These are the likely sources of information, and consequently must be searched before resorting to service by publication.¿ Before allowing a plaintiff to resort to service by publication, the courts necessarily require him to show exhaustive attempts to locate the defendant, for it is generally recognized that service by publication rarely results in actual notice.”¿ (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn. 5.) It appears Plaintiffs did not conduct a thorough, systemic investigation and inquiry, as Plaintiffs attempted to serve Defendant at one location, and there is no information as to whether Plaintiffs made attempts to look up another address for Defendant through likely sources of information.

Accordingly,

Plaintiffs' application for Order for Publication is DENIED without prejudice.

IT IS SO ORDERED.

Dated: August 7, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.